

## 25STCV20008 25STCV20008

County: los-angeles

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The Court tenders the following

tentative decision in the matter Laura Alcantar, et al. v. Uber

Technologies, Inc., et al., Los Angeles County Superior Court case number 25STCV20008,

set for hearing on September 24, 2026. Uber Technologies, Inc., Rasier, LLC,

and Rasier-CA, LLC (collectively, Defendants) move for an order compelling Laura

Alcantar and Edell Dawkins (collectively, Plaintiffs) to submit to binding arbitration

and staying the present action pending completion of arbitration, pursuant to

Code of Civil Procedure section 1281.2. The motion is granted.

### A. Legal Standard

“On petition of a party to an

arbitration agreement alleging the existence of a written agreement to

arbitrate a controversy and that a party thereto refuses to arbitrate such

controversy, the court shall order the petitioner and the respondent to arbitrate

the controversy if it determines that an agreement to arbitrate the controversy

exists, unless it determines that: (a) The right to compel arbitration has been

waived by the petitioner; or (b) Grounds exist for the revocation of the

agreement.” (Code Civ. Proc. § 1281.2, subds. (a), (b).)

A proceeding to compel arbitration is

in essence a suit in equity to compel specific performance of a contract. (Freeman v. State Farm Mutual Auto Insurance Co. (1975) 14 Cal.3d 473, 479.) Such enforcement may be sought by a party

to the arbitration agreement. (Code Civ. Proc., § 1280, subd. (e)(1).) A motion

to compel arbitration requires the facts to be proven by affidavit or

declaration and documentary evidence with oral testimony taken only in the

court's discretion. (Code Civ. Proc., §1290.2; Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th

394, 413–414.) The motion must set forth the provisions of the written

agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218.)

Once the moving party alleges that an arbitration agreement exists, the burden shifts to the responding party to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (See *Condee*, supra, 88 Cal.App.4th at p. 219.) However, if the existence of the agreement is challenged, “[movant] bears the burden of proving [the arbitration agreement’s] existence by a preponderance of the evidence.” (Rosenthal, supra, p. 413; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058–1060.)

## B. Discussion

### Defendants

argue that Plaintiffs should be compelled to arbitrate their claims against them pursuant to a written arbitration agreement (Agreement) between the parties. Defendants contend that the Agreement is governed by the Federal Arbitration Act (FAA), that it is valid and enforceable under that provision, and covers Plaintiffs’ claims. Plaintiffs have not filed a brief in opposition.

Defendants have presented evidence of an agreement to arbitrate which covers Plaintiffs’ claims.

### Plaintiffs

do not contest that Defendants have demonstrated the existence of a valid arbitration agreement. For a trial court to compel arbitration under Code of Civil Procedure section 1281.2, the moving party first bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Rosenthal, supra, 14 Cal.4th 394 at p. 413.) This burden can be met by attaching a copy of the agreement purporting to be signed by the opposing party. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*)). Alternatively, the moving party may set forth the agreement’s provisions in the motion. (*Ibid.*) If the opposing party disputes the agreement, it bears the burden of producing evidence to challenge its authenticity. (*Ibid.*) The opposing party may “testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not

remember signing the agreement.” (Ibid.) In that case, the moving party must then prove the existence of the agreement by a preponderance of the evidence. (Id. at pp. 165–166.)

Here,

Defendants demonstrate that Plaintiffs have agreed to Defendants’ terms of use on various occasions. (Pare Decl. ¶¶ 18, 26.) The arbitration provision within these terms applies to disputes, claims, or controversies which occurred before or after the date the Plaintiffs agreed to the terms. (Id., Exs. G, K.) Under the agreement, Plaintiffs and Defendants agreed to arbitrate “any dispute, claim, or controversy arising out of or relating to” the terms of use or Plaintiffs’ use of Defendants’ services. Plaintiffs allege negligence on the part of Defendants in providing the relevant service. (Compl.) Thus, Defendants have demonstrated the existence of an agreement to arbitrate the present controversy as required under Code of Civil Procedure section 1281.2. Plaintiffs offer no grounds for revocation of the agreement. Accordingly, Defendants’ motion is granted.

#### C. Conclusion

The motion to compel arbitration is granted and this case is stayed pending outcome of the arbitration.